

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE DANIEL D. DOMENICO**

Civil Action No.: 1:21-cv-01408-DDD-SBP
Courtroom Deputy: Robert R. Keech

Date: September 25, 2024
Court Reporter: Tammy Hoffschildt

Parties:

SHELLEE LAWSON,

Plaintiff,

Counsel:

Gregory S. Rich
Anne K. McMichael

v.

SAFECO INSURANCE COMPANY OF AMERICA, Holly C. White

Defendant.

COURTROOM MINUTES

TRIAL TO JURY (DAY 3)

9:08 a.m. Court in Session. Jury not present.

Court remarks on jury instructions and jury instruction conference.

9:13 a.m. Jury enters.

Defendant's witness **Damon Edward Baker** resumes.

9:13 a.m. Cross examination continues by Plaintiff by Mr. Rich.

9:14 a.m. Re-direct examination by Defendant by Ms. White.
Exhibit(s) identified: 10, 3, 4, 5, 6, 1

9:22 a.m. Defendant rests.

9:24 a.m. Court in Recess.

9:42 a.m. Court in Session. Jury not present.

Discussion regarding jury instructions and verdict form.

Court will take a recess to make the revisions to the jury instructions and verdict form.

10:03 a.m. Court in Recess.

10:26 a.m. Court in Session. Jury not present.

Further discussion regarding jury instructions and verdict form.

10:28 a.m. Court in Recess.

10:32 a.m. Court in Session. Jury enters.

10:35 a.m. Closing argument by Plaintiff by Mr. Rich.

10:47 a.m. Closing argument by Defendant by Ms. White.

11:11 a.m. Rebuttal argument by Plaintiff by Mr. Rich.

11:14 a.m. Court in Recess.

11:26 a.m. Court in Session. Jury enters

11:28 a.m. Court reads jury instructions and verdict form.

11:57 a.m. Jury excused to commence deliberations.

Court remarks to counsel regarding availability and contact information.

11:57 a.m. Court in Recess. Subject to call.

3:05 p.m. Court in Session. Jury not present.

Court informs counsel the jury has a question.

Discussion regarding response to jury question.

Court indicates proposed response to jury question and counsel has no

objection.

3:06 p.m. Court in Recess. Subject to call.

4:03 p.m. Court in Session. Jury not present

Court informs counsel that jury has reached a verdict.

4:04 p.m. Jury enters

Court reads jury verdict.

4:07 p.m. Jury is polled.

Court thanks jurors for their service and they are discharged.

4:09 p.m. Jury excused

Court's closing remarks to counsel.

ORDERED: Counsel for Plaintiff shall submit a form of final judgment by **Friday, September 27, 2024.**

4:10 p.m. Court in Recess. **TRIAL CONCLUDED. TOTAL TIME: 1:50**

CLERK'S NOTE: EXHIBITS AND DEPOSITIONS WERE RETURNED TO COUNSEL AT THE CONCLUSION OF THE TRIAL.